

ALCOHOL, OTHER DRUGS AND THE LAW

In New York State, you can be arrested for any of these offenses: aggravated driving while intoxicated (Agg-DWI), driving while intoxicated (DWI), driving with a blood alcohol content of .08 percent or more (.08 BAC), driving while ability impaired by a drug (DWAI-drug), driving while ability impaired by alcohol (DWAI), or driving under the combined influence of alcohol and drugs.

Blood alcohol content (BAC) is the percentage of alcohol in your blood and is normally determined by a chemical test of breath, blood, urine or saliva. A BAC of more than .05 percent is legal evidence that you are impaired, a BAC of .08 percent or higher is evidence of intoxication, and a BAC of .18 percent or more is evidence of aggravated driving while intoxicated.

Many people think chemical test evidence is required to prove you were intoxicated or impaired. However, the testimony of a police officer about the way you drive, However, the testimony of a police officer about the way you drive, and your appearance and behavior while interacting with and, behavior while interacting with the officer can provide enough evidence to convict you, even without a chemical test.

If you are found guilty of any alcohol or drug-related violation, the court must revoke or suspend your driver license when you are sentenced. Even if the court allows you to continue driving for 20 days, your driver license will be taken immediately.

The BAC standards and penalties for commercial drivers are even tougher than those indicated in this chapter. For complete information, see Section 1 of the Commercial Driver's Manual (CDL-10).

YOUR BAC

Your (BAC) depends on:

- How much alcohol you drink.
- How much time passes between drinks.
- Your weight.

Your BAC does not depend on the type of beverage you drink, how fit you are, or how you can "hold your liquor."

Different types of drinks do not affect you differently. It is the amount of alcohol you consume, not whether it is in beer, wine or liquor that raises your BAC and reduces your driving ability. These drinks contain about the same amount of alcohol – 1-1/2 ounces of liquor, 5 ounces of wine, 12 ounces of beer, and 12 ounces of wine cooler. None is "safer to drink" than the others.

For a 150-pound male, each one of these drinks contains enough alcohol to increase his BAC by about .02 percent. On average, it takes the body approximately one hour to remove that much alcohol. Studies indicate that a woman will take longer to process and remove alcohol from the blood. This can cause a higher BAC over a longer period of time.

.02 BAC =



5 oz. glass of wine
12% alcohol

OR



1 1/2 oz. liquor
80 proof

OR



12 oz. (360 ml) can of
beer 5% alcohol

OR



12 oz. wine cooler
5% alcohol